

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

**COMPLAINANTS PORTS AMERICA CHESAPEAKE, LLC AND MARINE
TERMINALS CORPORATION-EAST'S
MOTION FOR CONFIDENTIAL TREATMENT**

Complainants Ports America Chesapeake, LLC (“PAC”) and Marine Terminal Corporation-East (“MTCE”) (together “Complainants”), by and through their attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) June 21, 2023 Initial Order and 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of Complainants’ Exceptions to the Initial Decision of December 16, 2024 (“Exceptions”).

Confidentiality is necessary because Complainants' Exceptions contain and reference confidential business information related to both Complainants and Respondents, including financial information.

Pursuant to Rule 5(b), Complainants will file both a confidential and public version of the Exceptions. For the foregoing reasons, Complainants respectfully request that the materials and documents designated as confidential in the Exceptions be kept confidential and not disclosed to the public.

Respectfully Submitted,

Dated: February 7, 2025

By: /s/ *Gerald A. Morrissey III*

Gerald A. Morrissey III
Holland and Knight LLP
800 17th St. N.W., Ste. 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
Gerald.Morrissey@hklaw.com

Carrol P. Hand
Holland and Knight LLP
200 S. 10th St., Ste. 1000
Richmond, VA 23219
Telephone: (804) 799-6593
Carrol.Hand@hklaw.com

Kristine O. Little
Holland and Knight LLP
800 17th St. N.W., Ste. 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
Kristine.Little@hklaw.com

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

Peter F. Black
MILLS BLACK LLP
1215 19TH Street NW,
Washington, D.C. 20036
Email: pblack@millsblack.com
Telephone: (202)987-4103

H. Allen Black
MILLS BLACK LLP
1215 19th Street NW,
Washington, DC 20036
Tel: (202) 987-4102
Email: hablack@millsblack.com

Counsel to APS East Coast, Inc.

Executed: February 7, 2025

/s/ Carrol P. Hand
Carrol P. Hand